Bluebook Training, Rule 23 & Hyphenation

Monday, March 9, 2026

Admissions Updates

- Admissions Statement due **today** at **5:00 pm**
- Online *Bluebook* access – **same deadline** as above!
- Wednesday training – interactive! Email Mahek to RSVP
- Office Hours

Tue., Mar. 10, 2-3 p.m.	DE Office Hours	SLB Dining Hall
Fri., Mar. 27, 2-4 p.m.	EDE & EDME & DE Office Hours*	SLB Dining Hall
Tue., Mar. 31, 1-2 p.m.	EDE & EDME Office Hours	SLB Dining Hall

Rule 22: Tribal Sources

Tribal Sources

- We're not testing this rule! ☺
- Still super important!!!

Rule 23: Archival Sources

Rule 23

What are archival materials? “materials found in archives”

Generally three kinds of archival sources:

- (1) Historical documents created before the “internet era”
- (2) Documents where a digital file no longer exists
- (3) Physical objects

Rule 23

- Does not cover published materials, including letters found compiled in a published book (Use Rule 15 for these)
  - BUT includes originally unpublished texts compiled in published works that are then reprinted in a digital archive

- If the source is in an official archive, use the archival parenthetical instead of "(on file with author)" (Rule 23 > Rule 17)

Rule 23

Standard Archival Source

Author, Position, Title (or Description), Institutional Affiliation <pincite> (date) (on file with [Archive Owner], [Archival Collection], [Archival Location])

- All text is romanized
- Institutional affiliation and archive owner abbreviated according to T6, T7, T10, T13 (do not omit “in” or “of”)
- Do not abbreviate archival collection
- If no date is available, use (n.d.)
- If approximate year/year range, use "c." for circa
- Archival location is the filing location in the archive, <u>not</u> the geographical location of the archive itself

Short Citation Forms

- Use *supra*

Full Citation: Ledger of Goods Sold in the General Store of Longmeadow, Massachusetts (1774) (on file with Longmeadow Town Archives, Record Group 5, Box 312).

Short Citation: Ledger of Goods Sold in the General Store of Longmeadow, Massachusetts, *supra* note 2.

Case Materials

- Justices' Papers (23.7.1)
  - Retain "Justice" before author's name
  - If the author is a judicial staff member, include their position and court affiliation
  - If the papers refer to a specific case, include the case name and doc number after the title/pincite
- Other Case Docs (23.7.2)
  - Administrative proceeding docs
    - Title, [Exhibit No.], [Agency Tribunal], [Case No.] (Date) (archival information)
  - Other court case docs – Cite according to 23.7.1 with usual case citation instead of docket no.

Pre-1900 Newspapers

Cite according to S.R. 16.6!

Databases Reprinting Sources

- Use when hardcopy compilations (Rule 17) are reprinted in an online database
- Append database information to compilation citation
- Abbreviate and use small caps for the database and database owner

James Madison, Observations on Executive Removal Power (c. 1789), *reprinted in* NAT'L ARCHIVES: FOUNDERS ONLINE, https://founders.archives.gov/documents/Madison/01-12-02-0456 [https://perma.cc/AB12-CD34]

Handwritten & Typewritten Sources

- In titles and quotes, use romanized text unless author appears to use cursive for emphasis
- To quote stricken material, use either strikethrough text (part of larger quote) or a "(strikethrough omitted)" parenthetical (the entire quote)
- Omit unintelligible text with an ellipses and follow with an "(unintelligible text omitted)" parenthetical

Tangible Objects

- Cite as a standard archival object without the author
- Date is the date of the object's creation, not its discovery/purchase/archival
- If the title does not provide critical information about the title, include in title
  - Charles Albertus, Photograph of Accelerator (1964) (on file with Yale Univ., Manuscripts and Archives Repository, Charles Alburtus Photograph Collection, Box 1, Folder 55)

Hyphenation Guide

Hyphenation Guide

- *YLJ* has a strong presumption in favor of the *Chicago Manual of Style Hyphenation Guide*
  - For the purposes of the Sourcecite Exam, follow the Hyphenation Guide
  - Available on the SharePoint
  - When in doubt, refer to *Merriam-Webster's Dictionary*

Hyphenation Guide

<u>Core Principle</u>: Hyphenate compound-modifiers before a noun. Do not hyphenate after the noun.

- a well-known scholar vs. the scholar is well known
- a long-term plan vs. the plan is long term

Hyphenation Guide

- Compounds with prefixes are usually closed
  - coauthor, nonviolent, postmodernism
- BUT exceptions (where you do hyphenate):
  - Prefix before a capitalized word or numeral
    - sub-Saharan, pre-1950s
  - Prefix before a compound term
    - non-self-sustaining
  - To separate two letters that might be confusing when read together
    - anti-intellectual, extra-alkaline

Exceptions

- Do not hyphenate a compound modifier with an adverb
  - a carefully written brief, <u>not</u> a carefully-written brief
- Do not hyphenate permanent compounds
  - Refer to *Merriam-Webster*, Style Guide, and Hyphenation Guide
- Do not hyphenate proper adjectives (S.R. 24.17)
  - a Second Amendment issue, <u>not</u> a Second-Amendment issue

Gut Check!

Would the phrase be confusing if not hyphenated?

A small business owner could be…

(1) An owner of a small business, or

(2) A small owner of a business!

"Small-business owner" circumvents the issue.

Practice Exercise

Early American administrative law relied on a loosely-organized chain of command and a widely shared understanding of officer duties that allowed private litigants to hold officials accountable.

[1] Letter from Alexander Hamilton to Tench Coxe, May 2, 1791, Hamilton papers, Box 8 Folder 12 Library of Congress Manuscript Division; Memorandum regarding the responsibilities of customs officers (Sept 3 1792), treasury department records vol. 4, National archives. These materials reflect a long standing assumption that officers were bound by well established legal duties even within a poorly defined administrative hierarchy.

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Questions?

- This Week:
  - DE Office Hours
    - Tuesday, March 10, 2-3pm, in Dining Hall
  - Day in the Life: FYE Sourcecite
    - Wednesday, March 11, 12:10pm, SLB 128
    - Come to this in person - We will do some interactive review!
    - Email Mahek to RSVP!
- Practice Sourcecite Exam released on Saturday, March 14